TABLE OF CONTENTS
Part 8: Employment Zones

PURPOSE ..... 8.1 ~ 1

8.1 GENERAL PROVISIONS FOR EMPLOYMENT ZONES ..... 8.1 ~ 1 to 4
8.1.1 Uses to be Located within a Building ..... 8.1 ~ 1
8.1.2 Accessory Uses in Employment Zones ..... 8.1 ~ 1
8.1.3 Accessory Retail Sales and/or Accessory Retail Display in Employment Zones ..... 8.1 ~ 1
8.1.4 Accessory Dwelling Unit in E2 and E3 Zones ..... 8.1 ~ 2
8.1.5 Outdoor Storage in an E2 Zone ..... 8.1 ~ 2
8.1.6 Outdoor Display in an E2 Zone ..... 8.1 ~ 2
8.1.7 Outdoor Storage and Outdoor Display in E3 Zones ..... 8.1 ~ 2
8.1.8 Drive-Through ..... 8.1 ~ 2
8.1.9 *deleted by 0018-2015* ..... 8.1 ~ 3
8.1.10 Regulations for Motor Vehicle Service Uses in an Employment Zone ..... 8.1 ~ 3

8.2 E1 TO E3 ZONES ..... 8.2.1 ~ 1 to 8.2.4 ~ 8
8.2.1 E1 to E3 Permitted Uses and Zone Regulations ..... 8.2.1 ~ 1
8.2.2 E1 Exception Zones ..... 8.2.2 ~ 1
8.2.3 E2 Exception Zones ..... 8.2.3 ~ 1
8.2.4 E3 Exception Zones ..... 8.2.4 ~ 1

PURPOSE

The purpose of this Part is to provide a number of Employment Zones, that allow for a variety of business operations, including various industrial operations, in appropriate locations throughout the City.[1]

8.1 GENERAL PROVISIONS FOR EMPLOYMENT ZONES

In addition to the zone provisions contained in Parts 1 to 3 of this By-law, the following General Provisions for Employment Zones shall also apply:

8.1.1 Uses to be Located within a Building

Unless otherwise permitted, all **uses** in an E1 or an E2 zone shall be located wholly within a **building**, **structure** or part thereof.

8.1.1.1 All **uses** pertaining to cannabis production shall be located wholly within a **building**, **structure**, or part thereof. *(0055-2015), (0100-2023)*

8.1.2 Accessory Uses in Employment Zones
(0325-2008), (0379-2009), (LPAT Order 2020 December 14), (0111-2019/LPAT Order 2021 March 09)

8.1.2.1 An **accessory use** shall only be permitted accessory to an **office building** or **medical office building** and shall be contained wholly within the **office building** or **medical office building**.

8.1.2.1.1 Permitted **accessory uses** shall include laboratories and associated facilities for medical diagnostic and dental purposes, medical supply and equipment store, pharmacy, **motor vehicle rental facility**, **retail store** less than 600 m^2 and a **service establishment**. In an E1 zone, permitted **accessory uses** shall also include a **restaurant** and **take-out restaurant**. In an E1 and E2 zone, permitted **accessory uses** shall also include a **day care**.

8.1.2.1.2 A maximum of 20% of the total **gross floor area - non-residential** of an **office building** or **medical office building** may be used for **accessory uses**.

8.1.2.1.3 An accessory **day care** shall only be permitted in an E1 and E2 zone, subject to the provisions contained in Subsection 2.1.23 of this By-law.

8.1.3 Accessory Retail Sales and/or Accessory Retail Display in Employment Zones

8.1.3.1 In an E1 to E3 zone, a maximum of 20% of the total **gross floor area - non-residential** of a Business Activity **use** contained in Table 8.2.1 of this By-law, may be used for accessory retail sales, leasing and/or rental, accessory retail display and/or installation of products, other than **motor vehicles**, provided:
(0379-2009), (0297-2013), (0100-2023)

(1) the accessory retail sales, leasing and/or rental, accessory retail display and/or installation are only those products which are manufactured within a **manufacturing facility**, repaired within a **repair establishment**, wholesaled within a **wholesaling facility**, or distributed from a **warehouse/distribution facility**;

(2) such area is wholly within an enclosed **building**, **structure** or part thereof;

(3) such area is located within the same unit as the principal permitted **use**; and,

(4) sentence 8.1.3.1(1) of this By-law shall not apply to recreational cannabis producers; and accessory retail sales, accessory retail display and/or installation shall be limited to products purchased from the Ontario Cannabis Store.

[1] The purpose statement is for clarification purposes and does not form part of this By-law.

8.1.3.1.1 The area within any **building**, **structure** or part thereof used for accessory retail sales and/or accessory retail display of products shall be separated from the remainder of the facility by a permanent, solid, floor-to-ceiling and wall-to-wall partition and closed doors.

8.1.4 Accessory Dwelling Unit in E2 and E3 Zones

8.1.4.1 One **dwelling unit** for caretaking and/or security staff shall be permitted accessory to a Business Activity **use** contained in Table 8.2.1 of this By-law.

8.1.4.2 An accessory **dwelling unit** shall have a maximum **gross floor area - residential** of 70 m^2.

8.1.5 Outdoor Storage in an E2 Zone

8.1.5.1 **Outdoor storage** in an E2 zone is permitted accessory to a Business Activity **use** contained in Table 8.2.1 of this By-law, subject to the following:

8.1.5.1.1 **Outdoor storage** shall not exceed 5% of the **lot area**, or 10% of the **gross floor area - non-residential** of the **building**, **structure** or part thereof, whichever is the lesser and shall be located on the same **lot**;

8.1.5.1.2 **Outdoor storage** shall not be located closer to any **street line** than any portion of a **building**, **structure** or part thereof;

8.1.5.1.3 The area to be used for **outdoor storage** shall not be located within the **front yard** or **exterior side yard**;

8.1.5.1.4 A fence, having a minimum **height** of 2.4 m shall be required for screening around the perimeter of the area to be used for **outdoor storage**.

8.1.6 Outdoor Display in an E2 Zone

8.1.6.1 The provisions contained in Subsection 8.1.5 of this By-law shall not prevent the outdoor display of new products produced or distributed on a **lot**, by a Business Activity **use** contained in Table 8.2.1 of this By-law, subject to the following:

8.1.6.1.1 The total area used for outdoor display shall not exceed 5% of the **lot area**;

8.1.6.1.2 Outdoor display shall not be located closer to any **street line** than any portion of a **building**, **structure** or part thereof.

8.1.7 Outdoor Storage and Outdoor Display E3 Zones

8.1.7.1 The **outdoor storage** and/or outdoor display of goods shall not be situated closer to any **street line** than any portion of a **building**, **structure** or part thereof.

8.1.7.2 The area to be used for **outdoor storage** shall not be located within the **front yard** or **exterior side yard**.

8.1.7.3 A fence, having a minimum **height** of 2.4 m shall be required around the perimeter of the area to be used for **outdoor storage**.

8.1.7.4 Where there are no **buildings**, or **structures** on a **lot** and the **lot** is used for **outdoor storage**, the minimum required **yards** of the E3 zone regulations shall apply. *(0379-2009)*

8.1.8 Drive-Through
(0018-2015)

8.1.8.1 A drive-through is permitted accessory to a **financial institution** in an E2 and E3 zone. *(0018-2015)*

8.1.8.2 *deleted by 0018-2015*

8.1.9 *deleted by 0018-2015*

8.1.10 Regulations for Motor Vehicle Service Uses in an Employment Zone

8.1.10.1 A **building**, **structure** or part thereof, used for a **gas bar**, **motor vehicle service station**, **motor vehicle wash facility - restricted**, or **motor vehicle wash facility - commercial motor vehicle**, shall comply with the regulations contained in Table 8.1.10.1 - Regulations for Motor Vehicle Service Uses in an Employment Zone. *(0325-2008), (0379-2009)*

Table 8.1.10.1 - Regulations for Motor Vehicle Service Uses in an Employment Zone *(0379-2009), (0018-2021)*

Column	**A**	**B**
Line	**REGULATIONS**	
1.0	MINIMUM **LOT FRONTAGE**:	
1.1	**Interior lot**	36.0 m
1.2	**Interior lot** used for a **motor vehicle wash facility - restricted** or **motor vehicle wash facility - commercial motor vehicle**	45.0 m
1.3	**Interior lot** used for a **motor vehicle wash facility - restricted** or **motor vehicle wash facility - commercial motor vehicle** in combination with any other permitted **use**	60.0 m
1.4	**Corner lot**	48.0 m
1.5	**Corner lot** used for a **motor vehicle wash facility - restricted** or **motor vehicle wash facility - commercial motor vehicle**	60.0 m
1.6	**Corner lot** used for a **motor vehicle wash facility - restricted** or **motor vehicle wash facility - commercial motor vehicle** in combination with any other permitted **use**	70.0 m
2.0	MINIMUM SETBACKS:	
2.1	From a **lot line** to a fuel pump	6.0 m
2.2	Minimum **yard**/setback to a fuel dispensing island weather canopy shall be measured to the face of the canopy	✓

8.2 E1 TO E3 ZONES (EMPLOYMENT)

8.2.1 E1 to E3 Permitted Uses and Zone Regulations

All **buildings** and **structures** shall comply with the provisions contained in Parts 1 to 3 and Section 8.1 of this By-law, and the **uses** and zone regulations specified within the applicable zone column contained in Table 8.2.1 - E1 to E3 Permitted Uses and Zone Regulations.

Table 8.2.1 - E1 to E3 Permitted Uses and Zone Regulations
(0358-2007), (0325-2008), (0191-2009/OMB Order 2010 May 05), (0379-2009), (0297-2013), (0050-2013/ LPAT Order 2020 June 08) (0190-2014), (0018-2015), (0055-2015), (0018-2021), (0111-2019/LPAT Order 2021 March 09), (0121-2020/LPAT Order 2021 March 11), (0100-2023), (0217-2023), (0203-2023/OLT Order 2024 September 09)

Column	**A**	**B**	**C**	**D**
Line 1.0	**ZONES**	**E1** Employment in Nodes	**E2** Employment	**E3** Industrial
PERMITTED USES				
2.0	EMPLOYMENT			
2.1	OFFICE			
2.1.1	**Medical Office**	✓	✓	✓
2.1.2	**Office**	✓	✓	✓
2.2	BUSINESS ACTIVITIES			
2.2.1	**Broadcasting/Communication Facility**		✓	✓
2.2.2	**Manufacturing Facility**	✓	✓	✓
2.2.3	**Science and Technology Facility**	✓	✓	✓
2.2.4	**Transportation Facility**		*deleted by 0190-2014*	✓
2.2.5	**Truck Terminal**		✓	✓
2.2.6	**Warehouse/Distribution Facility**	✓	✓	✓
2.2.7	**Wholesaling Facility**		✓	✓
2.2.8	**Waste Processing Station**		✓ (1)	✓ (1)
2.2.9	**Waste Transfer Station**		✓ (1)	✓ (1)
2.2.10	**Composting Facility**		✓ (1)	✓ (1)
2.2.11	**Power Generating Facility**			✓
2.2.12	**Outdoor Storage**/Outdoor Display			✓
2.2.13	Self Storage Facility		✓	✓
2.2.14	Contractor Service Shop		✓	✓
2.2.15	Contractor's Yard			✓
2.2.16	**Vehicle Pound Facility**			✓
2.2.17	**Medicinal Product Manufacturing Facility**	✓ (14)	✓ (14)	✓ (14)
2.2.18	**Medicinal Product Manufacturing Facility - Restricted**	✓	✓	✓
2.2.19	**Plant-Based Manufacturing Facility**	✓ (14)	✓ (14)	✓ (14)
2.3	COMMERCIAL			
2.3.1	**Restaurant**		✓	✓
2.3.2	**Convenience Restaurant**		✓ (13)	✓
2.3.3	**Take-out Restaurant**		✓	✓
2.3.4	**Commercial School**	✓	✓	✓

Table 8.2.1 continued on next page

Column	A	B	C	D
Line 1.0	**ZONES**	**E1** Employment in Nodes	**E2** Employment	**E3** Industrial
Table 8.2.1 continued from previous page				
2.3.5	**Financial Institution**	✓ (12)	✓ (13)	✓ (13)
2.3.6	**Veterinary Clinic**	✓	✓	✓
2.3.7	**Animal Care Establishment**		✓	✓
2.4	**MOTOR VEHICLE** SERVICE			
2.4.1	**Motor Vehicle Body Repair Facility**			✓
2.4.2	**Motor Vehicle Body Repair Facility - Commercial Motor Vehicle**			✓
2.4.3	**Motor Vehicle Repair Facility - Commercial Motor Vehicle**		*deleted by 0379-2009*	✓
2.4.4	**Motor Vehicle Repair Facility - Restricted**		✓	✓
2.4.5	**Motor Vehicle Rental Facility**		✓	✓
2.4.6	**Motor Vehicle Wash Facility - Commercial Motor Vehicle**		*deleted by 0379-2009*	✓
2.4.7	**Motor Vehicle Wash Facility - Restricted**		✓	✓
2.4.8	**Gas Bar**		✓ (1)(2)(13)	✓ (1)(2)(13)
2.4.9	**Motor Vehicle Service Station**		✓ (13)	✓
2.4.10	**Motor Vehicle Sales, Leasing and/or Rental Facility - Commercial Motor Vehicles**		✓ (1)	✓ (1)
2.5	HOSPITALITY			
2.5.1	**Banquet Hall/Conference Centre/ Convention Centre**	✓	✓	✓
2.5.2	**Night Club**		✓ (1)(3)	✓ (1)(3)
2.5.3	**Overnight Accommodation**	✓	✓	✓
2.6	OTHER			
2.6.1	**Adult Video Store**		✓ (1)	✓ (1)
2.6.2	**Adult Entertainment Establishment**		✓ (1)	✓ (1)
2.6.3	**Animal Boarding Establishment**		✓ (1)	✓ (1)
2.6.4	**Active Recreational Use**	✓	✓	✓
2.6.5	**Body-Rub Establishment**		✓ (1)	✓ (1)
2.6.6	*deleted by 0111-2019/LPAT Order 2021 March 09*			
2.6.7	**Truck Fuel Dispensing Facility**		✓	✓
2.6.8	**Entertainment Establishment**	✓	✓	✓
2.6.9	**Recreational Establishment**	✓	✓	✓
2.6.10	**Funeral Establishment**		✓ (4)	✓ (4)
2.6.11	**Private Club**		✓	✓
2.6.12	**Repair Establishment**		✓	✓
2.6.13	**Parking Lot**		✓	✓
2.6.14	University/College	✓	✓	✓
2.6.15	*deleted by 0203-2023/OLT Order 2024 September 09)*			
ZONE REGULATIONS				
3.0	MINIMUM **LOT FRONTAGE**	30.0 m	30.0 m (9)	30.0 m (9)
4.0	MAXIMUM **FLOOR SPACE INDEX - NON-RESIDENTIAL - OFFICES** AND/OR **MEDICAL OFFICES**	n/a	1.0	0.5

Table 8.2.1 continued on next page

Column	A	B	C	D
Line 1.0	**ZONES**	**E1** Employment in Nodes	**E2** Employment	**E3** Industrial
Table 8.2.1 continued from previous page				
5.0	MINIMUM **FRONT YARD**	4.5 m (5)	7.5 m (5)(10)	7.5 m (5)(10)
5.1	Where the opposite side of the **street** on which the **lot** fronts is a Residential Zone	n/a	30.0 m (10)	30.0 m (10)
6.0	MAXIMUM SETBACK			
6.1	*deleted by 0121-2020/LPAT Order 2021 March 11*			
6.2	*deleted by 0121-2020/LPAT Order 2021 March 11*			
6.3	*deleted by 0121-2020/LPAT Order 2021 March 11*			
7.0	MINIMUM **EXTERIOR SIDE YARD**	4.5 m (5)	7.5 m (5)(10)	7.5 m (5)(10)
7.1	Where the opposite side of the **street** on which the **lot** fronts is a Residential Zone	n/a	15.0 m (10)	15.0 m (10)
8.0	*deleted by 0191-2009/OMB Order 2010 May 05*			
9.0	MINIMUM **INTERIOR SIDE YARD**			
9.1	**Lot** with a **lot frontage** less than or equal to 75.0 m	4.5 m (5)	the greater of 10% of the frontage of **lot**, or 4.5 m (5)(7)(10)	the greater of 10% of the frontage of **lot**, or 4.5 m (5)(7)(10)
9.2	**Lot** with a **lot frontage** greater than 75.0 m	4.5 m (5)	7.5 m (5)(7)(10)	7.5 m (5)(7)(10)
9.3	**Yard** abutting a Residential Zone	4.5 m (5)	15.0 m (10)	15.0 m (10)
10.0	MINIMUM **REAR YARD**	4.5 m (5)	7.5 m (5)(8)(10)	7.5 m (5)(8)(10)
10.1	**Yard** abutting a Residential Zone	4.5 m (5)	15.0 m (10)	15.0 m (10)
11.0	MINIMUM **HEIGHT**	n/a	n/a	n/a
12.0	MINIMUM **LANDSCAPED BUFFER**			
12.1	Minimum depth of a **landscaped buffer** measured from a **lot line** that abuts a Residential Zone	7.0 m (11)	7.0 m (11)	7.0 m (11)
12.2	Minimum depth of a **landscaped buffer** measured from a **lot line** that is a **street line**	4.5 m (11)	4.5 m (11)	4.5 m (11)
12.3	Minimum depth of a **landscaped buffer** measured from a **lot line** where the **lot line** abuts an Institutional, Office, Commercial, Downtown Core, Parkway Belt, or Buffer Zone, or any combination of zones thereof	3.0 m (11)	3.0 m (11)	3.0 m (11)
12.4	Minimum depth of a **landscaped buffer** measured from a **lot line** that abuts an Employment, Utility or Airport Zone, or any combination of zones thereof	0.0 m (11)	0.0 m (11)	0.0 m (11)
12.5	Minimum depth of a **landscaped buffer** measured from any other **lot line**	4.5 m (11)	4.5 m (11)	4.5 m (11)

Table 8.2.1 continued on next page

Column	A	B	C	D
Line 1.0	**ZONES**	**E1** Employment in Nodes	**E2** Employment	**E3** Industrial
Table 8.2.1 continued from previous page				
13.0	*deleted by 0121-2020/LPAT Order 2021 March 11*			
14.0	*deleted by 0121-2020/LPAT Order 2021 March 11*			

NOTES:
(1) See also Article 2.1.2.1 of this By-law.
(2) See also Table 2.1.2.2.3 of this By-law.
(3) See also Table 2.1.2.2.1 of this By-law.
(4) See also Table 2.1.2.2.2 of this By-law.
(5) See also Subsection 2.1.17 of this By-law.
(6) *deleted by 0121-2020/LPAT Order 2021 March 11*
(7) See Article 8.2.1.1 of this By-law.
(8) See Article 8.2.1.2 of this By-law.
(9) See also Subsection 8.1.10 of this By-law
(10) See Table 8.1.10.1 of this By-law.
(11) See also Subsection 2.1.25.
(12) See Article 8.2.1.3 of this By-law.
(13) See also Subsection 2.1.29 of this By-law.
(14) See also Article 8.1.1.1 of this By-law.

8.2.1.1 For properties zoned E2 or E3, an **interior side yard** is not required where an **interior side lot line** abuts a railway right-of-way that includes a spur line. *(0018-2021)*

8.2.1.2 For properties zoned E2 or E3, a **rear yard** is not required where a **rear lot line** abuts a railway right-of-way that includes a spur line. *(0018-2021)*

8.2.1.3 For properties zoned E1, a one **storey** free-standing **building** or **structure** used for a **financial institution** shall not be permitted within 100.0 m of Hurontario Street. *(0191-2009/OMB Order 2010 May 05), (0018-2021)*